

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201409484	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Wednesday, 08/27/2014 11:00 PM	Location of Incident: Inside 40th Precinct Stationhouse	18 Mo. SOL 2/27/2016	Precinct: 40
Date/Time CV Reported Mon, 09/15/2014 4:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/15/2014 4:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Wendy Flores	20183	954815	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andres Calle	18033	954593	PBBX
2. POF Melissa Castillo	12869	954615	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POF Wendy Flores	Off. Language: PO Wendy Flores made remarks to § 87(2)(b) based upon race.	A . Unsubstantiated
B . POF Wendy Flores	Force: PO Wendy Flores used physical force against § 87(2)(b)	B . Unfounded
C . POF Wendy Flores	Discourtesy: PO Wendy Flores spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On August 27, 2014, at approximately 11 p.m., § 87(2)(b) was given a summons for § 87(2)(b) inside a park located in the Bronx. Approximately 15 minutes later, she was called over the phone by PO Wendy Flores from Patrol Borough Bronx and told to come to the 40th Precinct Stationhouse. After arriving, she was told by an unknown group of officers that she had violated an order of protection and would be arrested. § 87(2)(b) became boisterous, telling the officers that it was wrong of them to trick her into coming to the stationhouse, and attempted to leave. Four officers took § 87(2)(b) to the floor and placed her into handcuffs. § 87(2)(b) was brought to the back of the precinct where she was handed off to PO Flores and PO Melissa Castillo.

PO Flores and PO Castillo brought § 87(2)(b) into a bathroom in order to perform a frisk. While in the bathroom, § 87(2)(b) alleged PO Flores told her, “I can’t let you fucking go back there with a bun and pins in your hair. You might have contraband and paraphernalia in your hair, bum ass black bitch.” (**Allegation A**). PO Flores and PO Castillo then removed bobby pins from § 87(2)(b) hair. Unprovoked, PO Flores then punched § 87(2)(b) seven times in the left side of her face (**Allegation B**). While being punched, § 87(2)(b) told PO Flores that she was handcuffed, but PO Flores told her, “I don’t give a fuck if you are handcuffed” (**Allegation C**). PO Flores led § 87(2)(b) out of the bathroom, toward an area near the holding cells where there was a bench. Before sitting § 87(2)(b) down, PO Flores punched § 87(2)(b) seven more times in the left side of her face (**within Allegation B**). § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) case was not eligible for mediation. An inquiry was filed with the NYC Comptroller’s Office on December 10, 2014, to determine if any notice of claim was filed. § 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the second complaint filed by § 87(2)(b) (encl. b1)
 - PO Flores has been a member of the NYPD for approximately 17 months. She has 4 previous CCRB allegations, none of which were substantiated. § 87(2)(g)
- § 87(2)(b)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Allegation A- Offensive Language: PO Wendy Flores made remarks to § 87(2)(b) based upon race.

Allegation C- Discourtesy: PO Wendy Flores spoke discourteously to § 87(2)(b)

It is undisputed that PO Flores and PO Castillo brought § 87(2)(b) into a bathroom in order to perform a frisk and remove bobby pins from § 87(2)(b) hair. When she questioned PO Flores' actions, § 87(2)(b) alleged that during the course of the frisk, PO Flores stated to her, "I can't let you fucking go back there with a bun and pins in your hair. You might have contraband and paraphernalia in your hair, bum ass black bitch. I don't give a fuck if you are handcuffed." PO Flores denied the allegation and PO Castillo corroborated PO Flores' statements (encl. f6-7 and g5-6). PO Flores also added that it was § 87(2)(b) who threatened the officers and used profanity (encl. f6-7). § 87(2)(g) [REDACTED]
[REDACTED]

[REDACTED]. Therefore, it is recommended that **Allegation A and Allegation C** be closed as *unsubstantiated*.

Allegation B- Force: PO Wendy Flores used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Flores punched her approximately seven times in the left side of her face while in the bathroom. Additionally, § 87(2)(b) alleged that PO Flores punched her approximately seven more times in the left side of her face before she was placed on a bench in the juvenile holding area. PO Flores denied using any physical force against § 87(2)(b) at any time during their interaction. PO Castillo corroborated PO Flores' statement (encl. d3-5).

PO Flores stated that as she was attempting to frisk § 87(2)(b) she repeatedly yelled, turned, and attempted to spit at her and PO Castillo. § 87(2)(b) continued to spit and yell as PO Flores led § 87(2)(b) to the holding area. At no point did PO Flores use any physical force in response to § 87(2)(b) actions. PO Castillo corroborated PO Flores' statements regarding § 87(2)(b) behavior (encl. f6-7 and g5-6).

§ 87(2)(b) arrest photo revealed no indication of the kind of facial trauma that would be associated with being punched approximately 14 times in the face. In fact, § 87(2)(b) face in the photo shows no sign of injury (encl. e1). Additionally, § 87(2)(b) provided photographs that were taken upon her release which did not reveal any facial injuries either (encl. d6-7).

§ 87(2)(a) PHL § 18(6)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(a) PHL § 18(6), § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *unfounded*.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date